3. SCOPE AND CHANGE CONTROL

3.1 The scope of the Services for any engagement is the scope stated in the applicable SOW.

3.4 Contractor shall perform such additional tasks, revisions and iterations as Client reasonably requests in order to achieve Client's objectives for the engagement, including an unlimited number of revision rounds on any deliverable, at no additional charge and without an amendment to the applicable Statement of Work.

3.5 Client's failure to sign a change order does not relieve Contractor of the obligation to continue performing the Services then in progress.

4. FEES AND PAYMENT

4.3 Invoices are payable ninety (90) days after Client's receipt and acceptance of the corresponding deliverable, acceptance is at Client's sole discretion, and Client may withhold payment of any invoice in whole or in part while any other matter between the Parties remains unresolved.

4.4 Contractor shall bear Contractor's own expenses. Client will reimburse travel and third-party costs only where a SOW identifies them in advance and Client has approved them in writing.

PART II - INTELLECTUAL PROPERTY, INDEMNIFICATION AND LIMITATION OF LIABILITY

7. INTELLECTUAL PROPERTY

7.1 Client retains all right, title and interest in the Client Materials.

7.2 All deliverables, works in progress, sketches, source code, data models, prompts, configurations, tooling and any other material Contractor conceives, creates or reduces to practice in connection with the Services are works made for hire owned exclusively by Client from the moment of creation, and to the extent any such material does not qualify as a work made for hire, Contractor hereby irrevocably assigns to Client all right, title and interest in it worldwide, including any general-purpose tools, libraries or methods Contractor develops while performing the Services.

7.3 Contractor shall execute any document and take any further act that Client reasonably requests to record or perfect Client's ownership under Section 7.2, at Client's expense.

7.4 Contractor waives, to the extent permitted by law, any moral right, attribution right or right of integrity in the Deliverables.

7.5 Contractor shall not display, describe or reproduce any Deliverable, in a portfolio or otherwise, without Client's prior written consent.

8. CONFIDENTIALITY

8.1 Each Party shall keep the other Party's Confidential Information in confidence, shall use it only for the purposes of this Agreement, and shall disclose it only to those of its personnel and advisers who need it for those purposes and who are bound by confidentiality obligations no less protective than these.

8.2 The obligations in Section 8.1 do not apply to information that is or becomes public through no breach of this Agreement, that the receiving Party already held without a duty of confidence, or that the receiving Party develops independently without reference to the disclosing Party's Confidential Information.

10. INDEMNIFICATION

10.1 Contractor shall defend, indemnify and hold harmless Client, its affiliates, officers, employees and agents from and against any and all claims, demands, losses, liabilities, damages, fines, penalties, costs and expenses, including reasonable attorneys' fees, arising out of or in any way connected with the Services, whether or not caused by any act or omission of Contractor, and this obligation is not subject to any limitation or cap on liability set out in this Agreement.

10.2 Client shall control the defence and settlement of any claim for which Contractor owes an indemnity under Section 10.1, and Contractor shall pay the costs of that defence as they are incurred.

10.3 Contractor's obligations under this Section 10 survive termination or expiry of this Agreement.

11. LIMITATION OF LIABILITY

11.1 Neither Party excludes liability for death or personal injury caused by its negligence, or for fraud.

11.2 Client's total liability to Contractor for any claim arising out of or relating to this Agreement, whether in contract, tort or otherwise, shall not exceed the lesser of the fees actually paid to Contractor in the thirty (30) days preceding the event giving rise to the claim or five hundred dollars ($500), and Contractor waives any right to consequential, incidental, indirect or special damages, to specific performance, and to injunctive relief of any kind.

11.3 Nothing in Section 11.2 limits Contractor's obligations under Section 10.

13. GUARANTEE

13.2 If Contractor is an entity, the individual signing below in the capacity of principal, member or officer of that entity

personally and unconditionally guarantees the full and prompt performance of every obligation of Contractor under this Agreement, including the payment of any amounts owed to Client, and Client may proceed directly against that individual’s personal assets without first proceeding against Contractor.

14.3 This Agreement is governed by the laws of the State of Delaware, without regard to its conflict of laws rules.